

The Plants, Fruits And Seeds (Regulation Of Import Into India) Order, 1989

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The Plants, Fruits And Seeds (Regulation Of Import Into India) Order, 1989

UNION OF INDIA

India

The Plants, Fruits And Seeds (Regulation Of Import Into India) Order, 1989

Rule THE-PLANTS-FRUITS-AND-SEEDS-REGULATION-OF-IMPORT-INTO-INDIA-ORDER-1989 of 1989

Published on 27 October 1989

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The Plants, Fruits And Seeds (Regulation Of Import Into India) Order, 1989

Published S.O. 867(E), dated 27.10.1989, published in the Gazette of India, Extraordinary, Part II, Section 3(i), dated 27.10.1989.

22.

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In exercise of the powers conferred by sub-section (1) of section 3 of the Destructive Insects and Pests Act, 1914 (2 of 1914

), and in supersession of the Plants, Fruits and Seeds (Regulation of Import into India) Order, 1984, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following order

for the purpose of prohibiting and regulating the import into India of agricultural articles mentioned herein, namely:-

Chapter I

Preliminary

1.

Short title and commencement .-This Order may be called The Plants, Fruits and Seeds (Regulation of Import into India) Order, 1989.

(2)

It shall come into force on the date of its publication in the Official Gazette.

2.

Definitions .-In this Order, unless the context otherwise requires,-

(a)

"Competent Authority" means an authority notified by the Central Government from time to time by notification in the Official Gazette;

(b)

"Designated Inspection Authority" means the authority notified by the Central Government from time to time through a notification to be published in the Official Gazette for the inspection of the plants grown in post entry quarantine facilities;

(c)

"Entry Point" means sea port, airport or land customs station through which import is permitted under this order;

(d)

"form" means form attached to this order;

(e)

"nursery" means any orchard, or any other place, facility, glass-house, screen house, utilised for raising plants;

(f)

"Official Phytosanitary Certificate" means a phytosanitary certificate in the format (reproduced as Schedule I) prescribed by the International Plant Protection Convention sponsored by the Food and Agricultural Organisation of the United Nations Organisation and issued by the authorised officer of the country of origin of consignments;

(g)

"packing material" means the packing material consisting of saw dust, wood shavings, waste paper and synthetic material used for packing of plants, fruits or seeds;

(h)

"pest" means any form of plant or animal life or any pathogenic agent, injurious or potentially injurious to plants or plant products and includes any insect, mite, nematode, snail, bacterium, fungus, virus, viroid, mycoplasma-like organism (MLO), phanerogam or weed;

(i)

"plant" means any plant or part thereof, whether living or dead, trees, shrubs, nursery stock and includes all vegetatively propagated materials;

(j)

"Plant Protection Adviser" means the plant Protection Adviser to the Government of India, Directorate of Plant Protection, Quarantine and Storage, N.H. IV, Faridabad;

(k)

"Post-entry Quarantine" means growing of plants in isolation for any specified period in a glass-house, and facility, area of nursery, approved by the Plant Protection Adviser;

(l)

"seeds" means seeds of agricultural, horticultural, fruit and fodder crops, forest trees and includes seedlings and tubers, bulbs, rhizomes, roots, cuttings, all types of grafts and other vegetatively propagated material utilized for sowing, planting or consumption;

(m)

"Schedule" means Schedule annexed to this Order;

(n)

"soil" includes earth, peat, compost, clay, sand or any medium capable of supporting life of plants and includes ballast or any soil for mineralogical or microbiological investigations or soil utilised for any other purpose.

Chapter II

3.

General conditions for import .-All consignments of plants, fruits and seeds (hereinafter referred to as "consignments") shall be imported into India subject to the following conditions, namely:-

(1)

No consignment shall be imported into India without a valid permit issued under clause (3).

(2)

(i)

All applications for a permit to import consignments by land, air or sea shall be sent in (triplicate) at least one month in advance to the Competent Authority, and the application for the import of seeds, fruits and plants for consumption shall be made in Form A and that for the import of seeds and plants for sowing or planting shall be made in Form B.

(ii)

[Each application shall be accompanied by a registration fee of Rs. 150 (rupees one hundred fifty) for the import of seeds, fruits, plants and plant products for consumption or processing and Rs. 300 (rupees three hundred) for the import of seeds, plants and planting material for sowing or planting, in the form of a bank demand draft in favour of the Pay and Accounts Officer concerned.]

(3)

(i)

The Competent Authority shall issue permit in Form C for import of seeds and fruits for consumption and in Form D for import of seeds and plants for sowing or planting, if he is satisfied that the applicant meets all the necessary conditions.

(ii)

The issue of permit may be refused or withheld by the Competent Authority after giving reasonable notice to the applicant and for reasons to be recorded in writing.

(iii)

The import permit issued under this clause shall be valid for a period of six months provided that the Competent Authority may, on request, extend the period of validity for a further period of six months, for reasons to be recorded in writing.

(4)

The Competent Authority shall forward to the importer an orange and green colour tag specified in Form E, in the case of permits issued for import of seeds and plants for sowing or planting so as to facilitate the identification of consignments at the time of their arrival at the land customs station or port of entry.

(5)

(i)

All the consignments for consumption, sowing and propagation or planting shall be imported into India only through entry points notified by the Central Government from time to time in this behalf, provided that all consignments of dry fruits, fresh fruits and vegetables for consumption, imported from Afghanistan, Pakistan and West Asian countries by land shall be imported only through Attari-Wagha Border.

(ii)

All consignments of plants and seeds for sowing and propagation or planting shall be imported into India through land customs station, seaport, airport at Amritsar, Bombay, Calcutta, Delhi and Madras and such other entry points as may be specifically notified by the Central Government from time to time.

(6)

(i)

The consignment, on arrival at an entry point, shall be inspected by the Plant Protection Adviser or any other officer duly authorised by him in this behalf, in accordance with the guidelines issued by the Plant Protection Adviser from time to time.

(ii)

The Plant Protection Adviser or the officer authorised by him may, after inspection, fumigation, disinfection or disinfestation, as may be considered necessary by him, accord quarantine clearance for the entry of a consignment into India or require, in public interest, destruction of the consignment or return of the same to the country of origin.

(iii)

Where fumigation or disinfestation or disinfection is considered necessary in respect of a consignment of plants, seeds and fruits of more than 1000 cubic metre in volume, the importer shall on his own or at his cost through an agency approved by the Plant Protection Adviser arrange for the fumigation, disinfestation or disinfection of the consignment, under the supervision of an officer duly authorised by the Plant Protection Adviser in that behalf;

(7)

It shall be the responsibility of the importer,-

(a)

to bring the consignments to the concerned Plant Quarantine and Fumigation Station, or to places of inspection, fumigation or treatment as directed by the Plant Protection Adviser or the officer duly authorised by him;

(b)

to open, repack and load into or unload from the fumigation chamber and seal the consignments; and

(c)

to remove them after inspection and treatment, according to the directions issued by the Plant Protection Adviser or an officer duly authorised by him.

(8)

The consignments intended for other countries shall be allowed transit through or transshipment at air or sea ports or land customs stations, provided they are packed in such a manner as will not permit spillage of any soil or material or escape of any pest, and subject also to the condition that they are not opened in any place in India.

(9)

No consignment shall be imported unless accompanied by an official Phytosanitary Certificate issued by the authorised officer of the country of origin of the consignment:

[Provided that plants, fruits, seeds and any other material of plant origin imported for consumption shall be allowed to be imported without an import permit:]

[Added by S.O. 523(E), dated 16.7.1993 (w.e.f. 16.7.1993).]

[Provided further that the mushroom spawn culture shall be allowed to be imported by 100 per cent. export oriental units without an import permit:]

[Substituted by S.O. 56(E), dated 20.1.1992 (w.e.f. 20.1.1992).]

[Provided further that such material imported as accompanied baggage and through International postal channels shall be allowed to be imported without a Phytosanitary Certificate or an import permit.]

[Added by S.O. 523(E), dated 16.7.1993 (w.e.f. 16.7.1993).]

(10)

Consignments for import should be packed in the packaging material envisaged as in clause 2(g) of this Order. No consignment wherein hay or straw or any material of plant origin is used for packaging or as a part of packaging material shall be allowed to be imported.

(11)

Import of soil, earth, compost, sand, plant debris alongwith plants, fruits or seeds shall not be permitted except under the following conditions:-

(i)

The consignments of soil, earth, clay and similar material for any microbiological, soil-mechanics or minerological investigations and peat for horticultural purposes may be permitted through specified air or sea ports or land custom station, on applications made for that purpose.

(ii)

The application for the purpose referred to in (i) above shall be made to the Plant Protection Adviser, at least one month in advance, in Form F.

(iii)

The Plant Protection Adviser may, after scrutiny of the application, and if satisfied of the purpose for which such consignment is being imported, issue special permit in Form G.

(iv)

The consignments shall be inspected, fumigated, disinfected or disinfected, on arrival, by the Plant Protection Adviser or any other officer duly authorised by him in this behalf.

(12)

The importer of the consignments or his agent shall pay to the Plant Protection Adviser or any other officer duly authorised by him in this behalf, the fees prescribed in Schedule III to meet the cost of inspection, fumigation, disinfestation, disinfection before the release of the consignments.

Chapter III

4.

Special conditions .-(1) In addition to the general conditions specified in Chapter II, the articles hereinafter mentioned shall be imported subject to special conditions prescribed for them in Schedule II, namely:-

(i)

All species of Allium;

(ii)

Cacao and all species of Sterculiaceae and Bombacaceae;

(iii)

All species of Citrus;

(iv)

Coconut, seeds and all species of Cocos;

(v)

Coffee plants and seeds, and all species of Coffee;

(vi)

Cotton seeds, and all species of Gossypium;

(vii)

Seeds of forest trees;

(viii)

Groundnut seeds, and all species of Arachis;

(ix)

Bucrene and all species of Medicago;

(x)

Potato and all species of Solanum;

(xi)

Rubber and all species of Hevea;

(xii)

Sugarcane and all species of Saccharum;

(xiii)

Tobacco and all species of Nicotiana;

(xiv)

Berseem and all species of Trifolium;

(xv)

Sunflower and all species of Helianthus;

(xvi)

Wheat and all species of Triticum;

(xvii)

Paddy and all species of Oryzae;

(xviii)

Cuttings, saplings and bud-woods of flowers or ornamental plants;

(xix)

Seeds and the plant material of fruits.

(2)

Every consignment of the articles hereinbefore mentioned shall be accompanied with the official Phytosanitary Certificate issued by the authorised officer of the country of origin of consignment, containing additional declarations that they are free from pests specified against them in column 4 of Schedule II.

Chapter IV

Post-Entry Quarantine

5.

Plants and seeds, which require Post-entry Quarantine as laid down in Schedule II of this Order, shall be grown in Post-entry Quarantine facilities, approved and certified by the Designated Inspection Authority, to conform to the conditions laid down by the Plant Protection Adviser. The period for which, and the conditions under which, the plants and seeds shall be grown in such facilities shall be specified in the permit granted under clause 3.

6.

The Post-entry Quarantine facilities shall be established and provided by the importer or his agent at his own cost and these shall be ready for use at the time of arrival of the consignment in India. The importer shall obtain a certificate from the Designated Inspection Authority who, after inspection of the Post-entry Quarantine facilities, shall certify that such Post-entry Quarantine facilities have been duly established and provided in accordance with the guidelines of the Plant Protection Adviser. The importer shall produce this certificate before the Officer-in-Charge of the Quarantine Station at the entry point, at the time of arrival of the consignment.

7.

(i) The Officer-in-Charge of the Quarantine Station, if after inspection of the consignment is satisfied, shall accord quarantine clearance with Post-entry Quarantine, condition on the production, by an importer, of a certificate from the Designated Inspection Authority as envisaged in clause 7, with the stipulation that the plants shall be grown in such Post-entry Quarantine facility for the period specified in the import permit.

(ii)

After according quarantine clearance with Post-entry Quarantine conditions to the consignments of plants and seeds requiring Post-entry Quarantine the Officer-in-Charge of the Quarantine Station at the entry point shall inform the Designated Inspection Authority, having jurisdiction over the Post-entry Quarantine facility, of their arrival at the location where such plants would be grown by the importer.

8.

The importer shall inform in advance the Designated Inspection Authority having jurisdiction, about the time of planting of such material.

9.

The importer shall permit to the Designated Inspection Authority complete access to the Post-entry Quarantine facility for the inspection of plants and shall, at all times, abide by his instructions concerning the plants in the Post-entry Quarantine.

10.

The Designated Inspection Authority shall inspect the plants grown in the Post-entry Quarantine facility of the importer for the detection of the incidence of pests and diseases and observance of general terms and conditions governing the approval of the Post-entry Quarantine. Such inspections shall be at the time of planting and at such intervals as may be considered necessary by the Designated Inspection Authority in accordance with the guidelines issued by the Plant Protection Adviser.

11.

(i) The Designated Inspection Authority shall permit the release of plants from Post-entry Quarantine, if they are found to be free from pests and diseases for the period specified in the permit for importation.

(ii)

Where the plants in the Post-entry Quarantine are found to be affected by pests and diseases during the specified period:-

(a)

the Designated Inspection Authority shall order the destruction or return to the country of origin of the affected consignment of whole or a part of the plant population in the Post-entry Quarantine if the pest or disease is exotic, and

(b)

the Designated Inspection Authority shall advise the importer about the curative measures to be taken to the extent necessary, if the pest or disease is not exotic and permit the release of the affected population from the Post-entry Quarantine only after curative measures have been observed to be successful. Otherwise, the plants shall be ordered to be destroyed.

(iii)

Where destruction of any plant population is ordered by the Designated Inspection Authority, the importer shall destroy

the same in the prescribed manner under the supervision of Designated Inspection Authority.

12.

The importer shall be liable to pay the prescribed fee for inspection of plants in the Post-entry Quarantine facility as laid down in Schedule III.

Chapter V

Appeal And Revision

13.

(i) If an importer is aggrieved by the decision of a Designated Inspection Authority regarding the destruction of any plant population, he may appeal to the Plant Protection Adviser within 7 days from the date of communication of the decision giving the grounds of appeal.

(ii)

It shall be lawful for the Plant Protection Adviser to rely on the observation of the Designated Inspection Authority and such other expert opinion, as he may deem necessary, for deciding the appeal.

14.

The memorandum of appeal shall set out the grounds on which the decision is challenged and shall be accompanied by a Treasury Challan evidencing the payment of a fee of Rs. 10.

15.

The Plant Protection Adviser may, at any time, call for the records relating to any case pending before the Designated Inspection Authority for the purpose of satisfying itself as to the legality or propriety of any decision passed by that authority and may pass such order in relation thereto, as it thinks fit:

Provided that no such order shall be passed after the expiry of three months from the date of the decision:

Provided further that the Plant Protection Adviser shall not pass any order prejudicial to any person, without giving him a reasonable opportunity of hearing.

Chapter VI

16.

Powers of relaxation .-The Central Government may, in public interest, relax any of the conditions of this Order relating to the permit and the Phytosanitary Certificate in relation to the import of any consignment.

FORM-A

[Clause 3(2)(i)]

Application For Permit To Import Seeds/fruits/plants For Consumption

To

The Competent Authority

The undersigned hereby applies for a permit authorizing the import seeds/fruits for consumption as per details given below:-

(Please write/type in Block Letters)

1. Name and exact description of seeds/fruits/plants to be imported:
2. Description of the Consignment and Quantity:
3. Name and address of the consignor:
4. Name and address of the importer:
5. Country and locality in which grown or produced:
6. Foreign port of shipment:
7. Approximate date of arrival of the consignment in India:
8. Name of Air/Sea Port/Land Customs Station of entry in India:

I undertake to produce an official Phytosanitary Certificate with additional declaration, if any as specified in the permit. I also undertake to pay to the Plant Protection Adviser or any officer duly authorized by him, the prescribed fees to meet the cost of inspection, fumigation, disinfestation and disinfection of the consignment referred to above.

Place:

Date:

.....

Signature of the importer or his authorised agent.

Name and postal address of the importer or his authorized agent.

FORM B

[See Clause 3, condition (2)]

Application For Permit To Import Seeds And Plants For Sowing/planting

To,

The Competent Authority,

The undersigned hereby applies for a permit authorizing the import of Seeds/Plants as per details given below :-
(Please type/write in BLOCK LETTERS)

1. Name and address of importers:

2.

Sl. No.

Exact description of seeds/plant to be imported (state commercial and botanical name)

Name of hybrid/variety

No. of packages

Total weight or total No. of propagating material

1

2

3

4(a)

4(b)

3. Catalogue of seeds producer establishing identity of the seed/planting material to be imported:

[Photo copy of cover page and the relevant portion, if original catalogue cannot be furnished/photocopies of documents establishing identity of the seeds/planting materials]

4. Name and address of the producing company:

5. Name and address of consignor:

6. Country and locality in which seed planting material Grown:

7. Foreign port of shipment:

8. Approximate date of arrival of consignment in India and name of Air/Seaport/Land Custom Station.

[Strike out whichever is not applicable]

9. Number and date of registration certificate from National Seeds Corporation /State Director of Agriculture/Horti-Culture/Central/State Govt. Authorities (alongwith a photocopy):

[Only for Food Processing Industries]

10. Number and date of import licence for commercial import of seeds of coarse cereals, oilseeds and pulses (photo copy to be attached):

11. ONLY FOR IMPORTS FOR WHICH POST ENTRY QUARANTINE/INSPECTION IS PRESCRIBED :

(a)

Exact locality and its postal address where imported seeds/plants will be grown:

(B)

Names, postal address of Designated Inspection Agency (DIA) under whose supervision imported Seeds/plant will be grown:

12. DECLARATION

I declare that the information furnished is correct to the best of my knowledge and belief.

I undertake to produce an official Phytosanitary Certificate with additional declarations, if any, as specified in the permit.

I also undertake to pay to the Plant Protection Adviser or the officer duly authorized by him, the prescribed fees to meet the cost of inspection, fumigation, disinfestation and disinfection of the consignment referred to above.

Place:

Date:

.....

Signature of the Importer or his authorized agent.

FORM C

[See clause 3(3)]

(National Emblem)

Government of India

Ministry Of Agriculture

(Department of Agriculture & Cooperation)

Directorate of Plant Protection, Quarantine & Storage

N.H.IV, Faridabad

Permit For Import Of Fruits/seeds/plants For Consumption

Permit No. _____

Date _____

Valid upto _____

1. Permission is hereby granted _____ (Name and address of the importer or his authorized agent) to import by air/sea/land the plants/seeds fruits herein specified grown or produced in _____ from _____ (Name and address of the consignor) through air/sea port/land custom station, _____ (Name of Port/Station) as per following details :-

1. Name and exact description of seeds/fruits/plants/to be imported

2. Description of the Consignment and Quantity :

3. Country and locality in which grown or produced :

4. Foreign Port of shipment :

5. Specific purpose of import :

The consignment should be -

(i)

. Accompanied by an official Phytosanitary Certificate issued by the authorized officer of the country of origin (i.e.....

[Here specify the country of origin.]

(ii)

. The official Phytosanitary Certificate shall also contain the following additional declarations :-

(a)

.....

(b)

.....

3. Quantity and description:

4. This permit is not transferable.

Place.....

Date.....

.....

Signature of the Competent Authority

(SEAL)

Copy to :-

(1)

the Collector of Customs _____ (Address of Collector of Customs)

(2)

Officer-in-charge, Plant Quarantine and Fumigation Station _____ (Name and address of the station)

Note :- (1) The importer or his authorized agent shall produce this permit for inspection by the Plant Protection Adviser or an officer authorized by him at the time of arrival of the consignment at the land customs station or port of entry.

(2)

The importer shall intimate immediately to the permit issuing Authority of any change of address.

FORM D

[See clause 3(3)]

(National Emblem)

Government of India

Ministry Of Agriculture

(Department of Agriculture & Co-operation)

Directorate of Plant Protection, Quarantine & Storage

N.H. IV, Faridabad-121 001

Permit For Import Of Plants/seeds For Sowing/planting

Permit No.....

Valid upto.....

Date.....

1. Permission is hereby granted to.....(Name and address of the importer or his authorised agent) to import by air/sea/land the plants/seeds herein specified grown or produced in..... from..... (Name and address of the Consignor) through air/sea port/land custom station..... (Name of port/station) as per following details :-

Sl. No.

Exact description of plants/seeds to be imported (state commercial and botanical name)

Name of hybrid/variety

Quantity

No. of packages

Total weight or total No. of propagating material

1

2

3

4(a)

4(b)

2. Catalogue of seeds producer establishing identity of the seed/planting material to be imported.

3. Name and address of the producing company.

4. Name and address of consignor.

5. Country and locality in which seed/planting material Grown.

6. Foreign port of shipment.

7. Approximate date of arrival of consignment in India and name of Air/Seaport/Land Custom Station.

[Here specify the country of origin.]

8. Number and date of registration certificate from National Seeds Corporation/State Director of Agriculture/HortiCulture/Central/State Govt. Authorities (alongwith a photocopy)

[Only for Food Processing Industries.]

9. Number and date of import licence for commercial import of seeds of coarse cereals, oil seeds and pulses (photo copy to be attached).

10. Only for imports for which post entry quarantine/inspection is prescribed

(a)

Exact locality and its postal address where imported plants/seeds will be grown.

(b)

Names, postal address of Designated Inspection Agency (DIA) under whose supervision imported plants/seeds will be grown.

2. The consignment of plants/seeds should be, -

(i)

free from soil and seeds;

(ii)

accompanied by an official phytosanitary Certificate issued by the authorised officer of the country of origin.

(i.e.)

[Here specify the country of origin]

)

(iii)
the official Phytosanitary Certificate shall also contain following additional declarations :-

(a)
.....

(b)
.....

(c)
.....

3. The plants/seeds should be grown under post-entry quarantine approved by the Plant Protection Adviser at..... (Name and address of location) for a period not exceeding..... days.

4. Quantity and description :

5. This permit is not transferable.

Place.....

Date.....

.....

Signature of the Competent Authority

(SEAL)

Copy to:-

(1)
The Collector of Customs..... (Address of the Collector of Customs)

(2)
Officer-in-Charge, Plant Quarantine & Fumigation State.....(Name and address of the Station)

Notes.-1) The importer or his authorised agent shall produce this permit for inspection by the Plant Protection Adviser or an officer authorised by him at the time of arrival of the consignment at the land custom station or port of entry.

(2)
The importer shall intimate immediately to the permit issuing authority of any change of Address.

FORM E

[See clause 3(4)]

Face Of Tag

This package contains perishable plants/seeds

Rush and Deliver to:

The Officer In-charge

Plant Quarantine & Fumigation Station,

Airport/seaport/Land Customs Station

.....
Signature of competent Authority

Reverse Of Tag

Permit No. _____

Valid upto _____

Directions for sending plants/seeds

Under this tag only materials covered by Permit the number of which it bears should be booked.

Any other material may be confiscated

Place inside the package the importer's name and address, the invoice, and an official Phytosanitary Certificate issued by authorized officers of your country. In case of import by sea rush all documents to consignee by air.

Attach Tag securely to consignment.

FORM F

[Clause 3(11)(ii)]

Application For Import Of Soil/peat

To

The Plant Protection Adviser to the Government of India

Directorate of Plant Protection
Quarantine & Storage
N.H.IV,
Faridabad-121 001.

The undersigned here applies for a special permit authorizing import of soil/peat as per details given below: -
(IN BLOCK LETTERS)

1. Exact details of the quantity of soil/peat to be import
:
2. Details of location (village, town, district, country) from where import will be made
:
3. Mode of packing of consignment
:
4. Specific purpose of import
:
5. Name and address of the consignor
:
6. Name and address of the importer
:
7. Foreign Port of shipment
:
8. Approximate date of arrival of consignment in India and Name of the airport or seaport or Land Customs Station
9. Specific location where consignment will be utilized
:

I undertake to pay to the Plant Protection Adviser or any officer duly authorized by him prescribed fees to meet the cost of inspection, fumigation, disinfestation or disinfection of the consignment referred above.

.....
Signature of the importer or his authorized agent.
Named and postal address of the importer or his authorized agent
Place:
Date:

FORM G

[Clause 3(11)(iii)]

Government of India

Ministry Of Agriculture

(Department of Agriculture and Co-operation)

Directorate of Plant Protection, Quarantine & Storage

N.H. IV, Faridabad-121 001

Special Permit Or Import Of Soil/peat

Special Permit No. _____

Valid upto _____

Date: _____

1. Permission is hereby granted to _____ (Name and address of importer or his authorized agent) to import by land/airport/sea the soil/peat, as per details given below, from _____ (Name and address of consignor) through land custom station/air/seaport of _____ (Name of the land) _____ as per following details :-
(Custom Station/air Sea ports).

1. Exact details of the quantity of soil/peat to be imported
:
2. Details of location (village, town, district, country) from where import will be made
:

3. Mode of packing of consignment

:

4. Specific purpose of import

:

5. Foreign Port of shipment

:

6. Specific location where consignment will be utilized

:

7. This permit is not transferable

:

.....

Signature of the Plant Protection Adviser to the Government of India

(SEAL)

Place.....

Date.....

Copy to :-

1. The Collector of Customs _____ (Address of the Collector of Customs)

2. The Officer-in-Charge, Plant Quarantine & Fumigation Station _____ (Name and address of the station)

Note 1 - (1) The importer or his authorized agent shall produce this permit for inspection by the Plant Protection Adviser or any officer duly authorized by him at the time of arrival of the consignment at the land custom station or port of entry.

(2)

The importer shall intimate immediately to the directorate of plant protection, quarantine and storage of any change of Address

I

[See clause 2(f)]

Official Phytosanitary Certificate

Plant Protection Organization of _____ (Name of the country) No. _____

To

The Plant Protection Adviser to the Govt. of India

Directorate of Plant Protection, Quarantine and Storage

N.H. IV, Faridabad-121 001(India)

DESCRIPTION OF CONSIGNMENT

Name and address of the exporter

:

Declared name and address of consignee

:

Number and description of packages

:

Distinguishing marks

:

Place of origin

:

Declared means of conveyance

:

Declared port of entry/land custom station

:

Name of the produce and the quantity declared

:

Commercial and Botanical names of the plants/seeds/fruits

:

This is to certify that the plants or plant products described at above have been inspected and free from quarantine pests and substantially free from other injurious pests; and that they are considered to Phytoanitary regulations of the importing country.

DISINFESTATION AND/OR DISINFECTION TREATMENT

Date _____

Treatment _____

Chemical (active ingredient) _____

Duration and temperature _____

Concentration _____

Additional information _____

Additional declaration _____ (Stamp of Organization

Place of Issue: _____

Name of the authorized officer _____

Signature

Date _____

No financial liability with respect to this certificate shall attach to _____ (Name of the Plant Protection Organization) _____ or any of its officers or representative. _____

*Option clause.

II

[Clause 4]

CONDITIONS, FOR IMPORT OF PLANTS, SEEDS FOR SOWING, PLANTING AND CONSUMPTION

Sl. No.

Plants, Seeds and propagating materials

Countries from where import is prohibited

Pest for which additional declarations in official phytosanitary certificate are required

Special conditions for import

(1)

(2)

(3)

(4)

(5)

1.

All species of Allium (Onion, garlic, leek, Chive, shallot etc.)

-

Smut (Urocystis capulae) Stem and bulb nematode (Ditylenchus dipsaci)

-

2.

Cocoa and all species of the family Sterculiaceae and Bombacaceae

West Indies, Africa and Sri Lanka

Pod rot (Manilia rorei), Mealy Pod (Trachysphaeria fructigena), Witches Broom (Crinipellia perniciosa) and swollen Shoot virus.

Growing imported seeds and plants under post-entry quarantine

3.

All species of Citrus (lemon, lime, orange, grape fruit etc.)

-

"Mal Secco" (*Deuterophoma trachiphilla*)

Growing imported seeds and plants under post-entry quarantine

4.

Coconut seeds and plants (all species of cocoa)

-

Red Ring (*Rhadinaphelenchus cocophilus*), Lethal yellowing, Cadang cadang, Bronze leaf wiltGuamcoconut disease, Leaf scorch Coconut leaf miner (*Promecotheca Cumingi*)

(i) Consignments can only be imported by Director, Central Plantation Crops Research Institute, Kasragod (Kerala)

(ii) Imported material shall be grown in individual containers uner post-entry quarantine.

5.

Coffee (a) Plants, seeds (all Species of Coffee)

-

American leaf spot (*Omphalia Flavida*), Virus diseases and coffeeBerryborer (*Hypothenamus hampii*)

(i) Consignments of coffee seeds plants can only be imported by Director, Coffee Research Station Karnataka Pin-577117

(b) Coffee Beans

Sri Lanka, Africa, South America

Coffee berry borer (*Hypothenamus Hampii*)

-

6.

Cotton seeds (all species of *Gossypium*)

-

Black arm (*Xanthomonas malvaccarum* and *Glomerella Gossypii*)

Consignment of seeds can only be imported by Director, Central Institute for Cotton Research, Nagpur (Maharashtra).

7.

Forestseeds (all species of *pinus*, *Ulmus* and *Castanea*)

-

Ceronartium Ribicola, *Endothea Parasitica*, *Ceratoystis ulmi*, *Dothio-Stroma pini* *Lophoderminum Pinastris*

Consignments can only be imported by Director Biological Research, Forest Research Institute New Forest Post, Dehradun or any organisation under Central or State Government.

8.

Groundnut seeds (Peanut all species of *Arachis*)

-

(i) Production of seeds in areas free of *Puccinia arachidis* and *Sphaceloma arachidis*.

(ii) Inspection of parent crops in active growing season and certification for freedom from peanut mottle, peanut Stunt & marginal chlorosis viruses.

(i) Consignments can only be imported as decorticated seeds.

(iii) Consignments originating from North and South America shall be grown in intermediate post-entry quarantine facility in non-groundnut growing countries and healthy seedlings or cuttings shall only be imported.

9.

Lucerne (all species of *Medicago*)

-

Bacterial wilt (*Corynebacterium Incidionum*)

-

10.

Potato (all species of *Solanum*)

-

Wart (*Synchytrium endobioticum* Cyst nematodes *Golobodera Pallida*, *G. rostochiensis*), *Leptin Otarasa decimlineata*) and freedom of parent crops from virus diseases

(i) Consignments can only be imported for research by Director, Central Potato Research Institute, Simla (H.P.)

(ii) Consignments shall be grown under post entry quarantine.

11.

Rubber (all species of *Hevea*)

America or West Indies

South American Leaf Blight (*Mycrocyclus ulei*) *Sphaerostibe repens*

-

12.

Sugarcane (all species of *Saccharum*)

Fiji, New Guinea, Australia, Philippines

Leaf Scald (*Xanthomonas albinea*), Gummosis (*Xanthomonas vasculorum*), Sereh, white leaf, Downy mildew and chlorotic streak

(i) Consignment shall be imported only by Director, Sugarcane Breeding Instt., Coimbatore (Tamil Nadu).

(ii) Consignment shall be grown under post-entry quarantine.

13.

Sunflower (all species Argentina, Peru of *Helianthus*)

Argentina, Peru

Downy Mildew (*Plasmopara halstedii*), *Orobanche Camana*

(i) Consignments imported for sowing and planting shall be grown under post-entry quarantine.

(ii) Consignments imported for consumption shall be utilized under supervision of Plant Protection Adviser or any officer authorized by him.

14.

Tobacco (all species of *Nicotiana*)

(a) Tobacco seeds

-

Blue Mould (*Peronospora tabacina*)

(i) Tobacco seed for sowing and planting shall only be imported by Director Central Tobacco Research Institute, Rajahmundry (Andhra Pradesh) for research

(ii) Consignment shall be grown under post-entry quarantine.

(b) Unmanufactured Tobacco

-

Tobacco Moth (*Ephestia elutella*)

15.

Berseem (all species of *Trifolium*)

Bulb and Stem Nematode (*Ditylenchus dipsaci*)

16.

Wheat (all species of *Triticum*)

(a) for sowing and planting

Ergot (*Claviceps purpurea*) Dwarf bunt (*Tilletia contraversa*), Spikelet rot *Pseudomonas antrifaciens*) and granary weevil (*Sitophilus granarius*)

i. Consignments for sowing and planting shall only be imported by Director, National Bureau of Plant Genetic Resources, New Delhi.

(ii). Consignment shall be grown in post-entry quarantine

(b) for consumption

-

Granary weevil (*Sitophilus granarius*)

i. Ergot not to exceed 0.05% limit.

ii. Dwarf bunt not to exceed 0.005%.

Note: Import of wheat preferably be undertaken during summer months.

17.

Paddy seeds/rice

-

Granary weevil (*Sitophilus granarius*).

18.

Cuttings/Saplings/budwood of flowers and ornamental plants

-

Exotic pests and diseases to be specified in the import permit

Consignments shall be grown in approved post entry quarantine

19.

Planting material/seeds of fruits

-

Exotic pests and diseases to be specified in the import permit.

(i) Import to be permitted selectively by the Central Government on the recommendations of Director of Horticulture/Agriculture of State Government.

(ii) Consignment to be grown under Post Entry Quarantine conditions, to be specified by the Plant Protection Adviser.

III

[Substituted by S.O. 467(E), dated 16-5-2000.]

[See Clauses 3(12) and 12]

PLANT QUARANTINE INSPECTION FEE AND TREATMENT CHARGES

Sr.No.

Particulars of Import

Numbers/Weight Volume

Fee

1

2

3

4

1.

Plants/planting materials including, cuttings, saplings, budwood, etc. requiring Post Entry Quarantine.

(i) Upto 10 Nos.

(ii) Above 10 Nos.

Rs.

250/-

Rs.

250/- plus

@ Rs. 1.60 per plant.

2.

Plants/planting material including bulbs, tubers, corns, rhizomes, etc. not requiring Post Entry Quarantine.

(i) Upto 100 Nos.

(ii) Above 100 Nos.

Rs.

100

Rs.

100 plus

@ Rs. 0.40 per plant.

3.

Seeds for sowing

(i) Upto 1 Kg.

(ii) Above 1 Kg.

Rs.

100

Rs.

100 plus

Rs.

50 per additional kg. or part thereof.

4.

Plant material seeds and fruits for consumption

(i) Upto 2 Kg.

Rs.

50

(ii) Above 2 Kg.

Rs.

50 plus

Upto100 kg.

Rs.

5 per additional Kg. or part thereof.

(iii) Above 100 kg.

Rs.

550 plus

Upto1000 kg.

Rs.

2 per additional kg.

(iv) Above 1000 kg.

Rs.

2,550 plus

Rs.

0.60 per additional kg.

B. FUMIGATION/DISINFECTION/DISINFESTATION/SUPERVISION CHARGES

Sl. No.

Particulars of Import

Volume /Weight

Fee

1

2

3

4

1.

Plants/planting products/planting materials/dry fruits/fresh fruits/vegetables/seeds/soil/earth/clay

A.

On volume :

(i) Upto 5 cu.m.

(ii) Above 5 cu.m.

Rs.

600

Rs.

600 plus

Rs.

300 per additional 5 cu.m. or part thereof

B.

On container basis :

(i) 20'

container (33 cu.m.)

(ii) 40' container (66 cu.m)

Rs.

2,400

Rs.

4,500

C.

Supervision Charges

Rs.

500 per day per consignment.

(The importer shall arrange for fumigation, disinfestations of consignment at his cost, under the supervision of Plant Protection Adviser or an officer authorized by him in this behalf)].

Related AI tags, queries and research notes

Translation